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Provision of April 10, 2025
Register of provisions
n. 211 of April 10, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, Acting Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, regarding
the protection of natural persons with regard to the
processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018 n. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the Secretary
General pursuant to Article 15 of the Guarantor's regulation n. 1/2000;

REPORTING Prof. Ginevra Cerrina Feroni;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

Two complaints (specifically, one complaint and one report) have been received by this Authority,
wherein the receipt of unwanted phone calls
aimed at promoting real estate brokerage services of the Agency "Vogliocasa Milano" was reported,
which, in response to the requests of the
interested parties, stated that it had obtained the
contact data from Realmaps S.r.l. (hereinafter also
"Realmaps" and "supplier"). This supplier was
subject to a separate investigation, conducted in
April 2024, which revealed several
critical issues regarding the processing of personal
data intended for real estate agencies for
marketing purposes (see provision n. 11 of January 16,
2025, available at www.gpdp.it doc. web n.
10110241).

Since it was not possible to definitively identify the real estate agency (affiliated with Vogliocasa)
to which the contacts mentioned in the complaints received by the Authority could be traced, the Office
decided to formulate a request for
information to the franchisor Vogliocasa Holding & Servizi S.r.l. (hereinafter
"Vogliocasa" and "Company"), pursuant to Article 157 of the Code (ref. prot. n. 58477/24), regarding
the described
processing. This request, notified on May 14,

2024, and duly delivered to the Company's certified email address, went unanswered. Nor was it possible to establish a dialogue with the individuals responsible for handling the case, despite the phone reminders made by the Office on June 4 and 7, 2024. In these circumstances, despite assurances of a prompt follow-up from the competent functions, Vogliocasa continued to be unreachable, even though the obligation of the data controller to respond to the Authority's request for information, made pursuant to Article 157 of the Code, was emphasized during the aforementioned phone calls, under penalty of the application of an administrative pecuniary sanction. With Vogliocasa remaining silent, and considering the inertia displayed by the Company in having contact, even by phone, with the Authority, the act to initiate the procedure of June 14, 2024 (ref. prot. n. 72589/24) was adopted - notified on July 17, 2024, by the Special Privacy Unit of the Guardia di Finanza - with which the failure to respond to the request for information pursuant to Article 157 of the Code was contested. In this circumstance, the notifying body was also tasked with acquiring the information subject to the request of May 14, 2024, as well as - should the Company be found unrelated to the conduct complained of - identifying the affiliated real estate agency that would have carried out the processing, clarifying the legal status held by it in promoting the "Vogliocasa" brand (data controller or processor). Therefore, on July 17 and 18, 2024, the Special Privacy Unit of the Guardia di Finanza conducted an investigation at the registered office of the Company, which revealed that the phone calls reported in the complaints received by the Authority were made by Undici S.r.l.s., an affiliate of Vogliocasa, which would have acted as an autonomous data controller; to confirm this, Vogliocasa provided, during the inspection, "the email and the related attached file with which Realmaps provided the lists" to the aforementioned affiliated real estate agency. The unrelatedness invoked by Vogliocasa was reiterated in the communication to the Authority of July 29, 2024, supplementing what was stated during the inspection. With this note, the Company explained the reason for the lack of response to the Authority's request for information, stating that it had not followed up because, as soon as it was "notified" of the real estate agency involved in the complained conduct, Vogliocasa "was absolutely convinced that it would be UNDICI S.R.L.S. that would respond by clarifying the facts, which evidently did not happen." In any case, the Company "has made itself fully available to the Special Unit of the Guardia di Finanza to dispel any doubts regarding the total good faith of Vogliocasa." Therefore, it requested "not to impose any sanction given the reparatory and ABSOLUTELY COLLABORATIVE conduct [...] with the Guardia di Finanza" or to "apply the minimum penalty."

2. LEGAL ASSESSMENTS

Based on the statements made by Vogliocasa, for which the declarant is responsible pursuant to Article 168 of the Code, and considering the documentation produced during the inspection, it is necessary to evaluate the framework of responsibilities in the case at hand in light of the elements provided by the Company.

Vogliocasa has demonstrated that it is unrelated to the conduct complained of in the grievances submitted to the Authority, which is solely attributable to the affiliated real estate agency that would have acted as an independent data controller. In particular, Vogliocasa has indicated the company that would have made the unwanted contacts and against which, for a complete assessment of the aspects related to the legality of the treatments in question, the Authority has initiated a separate investigation. However, it remains a fact that Vogliocasa did not respond to the Authority's request for information, despite the fact that the same note clearly highlighted that, in case of non-compliance, "the administrative pecuniary sanction provided for by Article 166, paragraph 2, of the aforementioned Legislative Decree No. 196/2003" would be applicable. This was also recalled during the telephone reminders on June 4 and 7, 2024.

The Company did not take into account the consequences that could arise from the failure to respond to the requests of the Guarantor, even from the perspective of the complete instruction of the procedure. It is irrelevant that Vogliocasa had promptly "informed" the real estate agency involved in the investigation, under the mistaken belief that this was sufficient to satisfy the request and to be exempted from the obligation to respond to the Authority. The request for information, duly notified to Vogliocasa's certified email, required a response, even if it consisted of a declaration of non-involvement by the Company, which instead erroneously believed it could evade such information to the Authority. Therefore, Vogliocasa, the recipient of the request for information, should have in any case provided a timely and complete response to the Authority, in light of the overall duties of cooperation identified by Article 31 of the Regulation and Article 157 of the Code.

The inaction of the Company has resulted in an increase in the procedural obligations and a slowdown in administrative action, making it necessary to assign the Special Privacy Unit of the Guardia di Finanza to obtain the information useful to define the complained data processing. Therefore, considering that Vogliocasa's certified email address appeared fully functional, and noting that the system returned acceptance and delivery confirmations for the requests for information, which completed the notification of the act, it is believed that the violation of Article 157 of the Code is established.

The failure to respond to the Authority's request for information, constituting a violation of Article 157 of the Code, requires the adoption of an injunction order, pursuant to Articles 166, paragraph 7, of the Code and 18 of Law No. 689/1981, for the application against Vogliocasa of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

3. INJUNCTION ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE PECUNIARY SANCTION

Based on the above, for the determination of the amount of the sanction, which must "in any case [be] effective, proportionate, and dissuasive" (Article 83, paragraph 1, of the Regulation), it is necessary to take into account the elements indicated in Article 83, paragraph 2, of the Regulation.

As aggravating circumstances to be considered in this case, the following should be noted:

1) the subjective dimension of the conduct, to be considered seriously negligent, given that the data controller acted with disregard for the Authority's request for information, to which it did not pay due attention (Article 83, paragraph 2, letter b of the Regulation).

As mitigating factors, the following should be taken into account:

1) the absence of previous proceedings initiated against the data controller (Article 83, paragraph 2, letter e of the Regulation);

2) the degree of cooperation with the Authority during the inspection, since Vogliocasa identified the Company that would have carried out the complained processing and produced the documentation relating to the relationship between the latter and Realmaps (Article 83, paragraph 2, letter f of the Regulation).

In an overall perspective of necessary balancing between the rights of the data subjects and the freedom of enterprise, it is necessary to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction.

Therefore, it is believed that - based on the overall elements mentioned above - the administrative sanction of a payment of 5,000.00 euros (five thousand) should be applied to Vogliocasa, which is equal to 0.025% of the maximum administrative sanction of 20 million euros.

Furthermore, in this case, it is believed that the accessory sanction of publication on the Garante's website of this provision should be applied, as provided for by Article 166, paragraph 7 of the Code and Article 16 of the Garante Regulation No. 1/2019.

In implementation of the principles set forth in Article 83 of the Regulation, the imposition of this accessory sanction appears proportionate due to the omission conduct and the aggravation of the times and costs of the procedure, which results in an overall assessment of negligence on the part of the data controller in relations with the Authority, particularly concerning the obligations of collaboration and information.

Finally, it is noted that the conditions set forth in Article 17 of Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Garante, are met for the annotation of the violations identified here in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation.

ALL OF THE ABOVE CONSIDERED, THE GARANTE

pursuant to Article 57, paragraph 1, letter f), of the Regulation, declares the conduct of Vogliocasa Holding & Servizi S.r.l. - with registered office in Milan, via Genova Thaon di Revel 21, VAT number 12445370963 - illegal, as described in the reasoning, consisting of the violation of Article 157 of the Code in relation to the failure to respond to the Authority's request for information;

ORDERS

Vogliocasa Holding & Servizi S.r.l., represented by its legal representative, to pay the sum of 5,000.00 euros (five thousand) as an administrative pecuniary sanction for the violation indicated in the reasoning; it is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

ENJOINS

the aforementioned Company, in the event of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of 5,000.00 euros (five thousand) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions in accordance with Article 27 of Law No. 689/1981;

DISPOSES

a) pursuant to Articles 154-bis of the Code and 37 of Regulation No. 1/2019, the publication of this provision as well as, pursuant to Article 166, paragraph 7, of the Code, the publication of this injunction order on the Garante's website;

b) pursuant to Article 17 of the Garante Regulation No. 1/2019, orders the annotation in the internal register of the Authority, as provided for by Article 57, paragraph 1, letter u) of the Regulation, of the violations and the measures adopted.

Pursuant to Article 78 of Regulation (EU) 2016/679, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150 of September 1, 2011, an appeal against this provision may be filed with the ordinary judicial authority, with a petition submitted to the ordinary court of the place where the data controller resides, or, alternatively, to the court of the place of residence of the data subject, within thirty days from the date of communication of this provision, or sixty days if the appellant resides abroad.

Rome, April 10, 2025

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Cerrina Feroni

THE ACTING SECRETARY GENERAL
Filippi